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Key Definitions and Treaty Objectives:

Article 1: Use of Terms

For the purposes of this Agreement:

1. “Area” means the ocean surface, water column, seabed, ocean floor and subsoil thereof.
2. “Area-based management tool” means a tool, including a marine protected area, for a geographically defined area through which one or several sectors or activities are managed with the aim of achieving particular conservation and sustainable use objectives in accordance with this Agreement.
3. “Areas beyond national jurisdiction” means the high seas and the Area beyond 200 nautical miles from each country’s coast and outside of Exclusive Economic Zones (EEZs).
4. “Biological diversity” means the variability among living organisms from all sources, including species, genetic, and ecosystem diversity, including the complex relationships between living things and their environment.
5. “Biotechnology” means any technological application that uses biological systems, living organisms, or derivatives thereof, to make or modify products or processes for specific use.
6. “Conservation”, the management of human use of the biosphere so that it may yield the greatest sustainable benefit to present generations while maintaining its potential to meet the needs and aspirations of future generations.
7. “Convention” means the United Nations Convention on the Law of the Sea of 10 December 1982.
8. “Cumulative impacts” means the combined and incremental impacts resulting from different activities, including known past, present and reasonably foreseeable activities, or from the repetition of similar activities over time, and or the consequences of climate change, ocean acidification and related impacts.
9. “Enhanced cooperation” means initiatives that aim to support countries in significantly scaling up their support of marine protection by combining their respective expertise and financing mechanisms to provide comprehensive policy advice and financial assistance for marine protection projects and reforms while balancing countries’ economic status and sovereignty.

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10. “Knowledge sharing” refers to the transnational exchange of ideas, information, and experiences between key actors, organizations, and communities across different countries.
11. “Green shipping” refers to shipping practices that minimize, to the extent technologically possible, the environmental impact of transporting goods through international waters. The term “green” in this instance references measures of greenhouse gas emissions, pollution, and ecological disturbance.
12. “Local communities” refers to any groups of varying sizes at a sub-national or sub-state level. Entities included under this definition include, *inter alia*, villages, towns, cities, Indigenous communities, and additional relevant stakeholders. When used in the context of the treaty, additional actors that support these communities—through economic benefits, sustainability protections, or job creation—may also be included in this category.
13. “Low-Impact”: Low impact practices are those that reduce disturbances to the ocean to the maximum degree possible with existing technologies, science, and knowledge.
14. “Marine protected area” means a geographically defined marine area that is designated and managed to achieve specific short-term and long-term biological diversity conservation objectives and may allow, where appropriate, sustainable use of the Area provided it is consistent with the conservation and sustainability objectives, and may preclude, *inter alia*, deep sea mining, commercial fishing, dredging, or other disruptive activities, in some locations. Fishing including by local and Indigenous groups and/or commercial fishers may be permitted in some areas with varying degrees of protection, limitations, and prohibitions so long as these activities are consistent with long-term objectives and goals of the MPA.
15. “Marine Biological Diversity” means the variability among living organisms in the ocean, including species, genetic, and ecosystem diversity, including the relationships between living things and their environment.
16. “Marine technology” includes, *inter alia*, information and data, provided in a user friendly format, on marine sciences and related marine operations and services; manuals, guidelines, criteria, standards and reference materials; sampling and methodology equipment; observation facilities and equipment for in situ and laboratory observations, analysis and experimentation; computer and computer software, including models and modeling techniques; related biotechnology; and expertise, knowledge, skills, technical, scientific and legal know-how and analytical methods related to the conservation and sustainable use of marine biological diversity.

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17. “Navigation” means the right to plan and control the movement of a vessel’s voyage on the high seas, while flying the flag of any sovereign state and following applicable international law.
18. “No-regrets approach” means an approach to management that involves erring on the side of caution and planning well in advance.
19. “Party” means a State that has consented to be bound by this Agreement and for which this Agreement is in force.
20. “Sustainable” (incl. “sustainability”, “sustainable use”, etc.) describes the use—or lack of use—of
 - Natural resources such as fish in a way and at a rate that does not lead to a threat to maintaining a high level of decline of biological diversity and ecosystem services, thereby maintaining their potential to meet the needs and aspirations of present and future generations, and
 - Green shipping to reduce carbon emissions associated with the industry while acknowledging the importance of shipping to many parties’ economies and national sovereignty.
 - Non-biological resources and services to reduce subsequent impacts on biological diversity. These resources and services include but are not limited to extractive industries, fishing, energy infrastructure, climate change mitigation strategies, supply and shipping pollution policies, and waste (e.g. plastic, toxic, non-metallic).
21. “Voluntary contributions” refer to voluntary donations from countries, international organizations, private entities, or philanthropic groups.

Article 2 General objective

The objective of this Agreement is to ensure the conservation and sustainable use of all marine ecosystems in areas beyond national jurisdiction, for the present and in the long term, through effective implementation of the relevant provisions of the Convention and further international cooperation and coordination.

Article 3 Scope of application

This Agreement applies to areas beyond national jurisdiction.

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Article 4 Exceptions

This Agreement applies to all Parties. However, this Agreement does not apply to any vessels or watercraft in the case of genuine, human life-threatening emergencies of persons or groups in that area. In these cases, each Party shall ensure, by the adoption of appropriate measures, advance planning, and disaster prevention, that such emergencies are prevented as much as possible. Use of this exception does not absolve Parties from responsibility to improve disaster prevention plans, and Parties may still be held liable for carelessness with regards to the term of this Agreement, including in relation to implementing sustainability measures to the greatest extent possible.

This does not apply to any warship, military aircraft or naval auxiliary.

However, each Party shall ensure, by the adoption of appropriate measures not impairing the operations or operational capabilities of such vessels or aircraft owned or operated by it, that such vessels or aircraft act in a manner consistent, so far as is reasonable and practicable, with this Agreement.

Additionally, any additional entity representing an industry excluded from portions of the ocean by the agreement may make a formal application to the Conference of the Parties for an exception. In order to do so, the appealing entity must state: why access to the area is of critical importance to their industry or local communities; for which timeframe they wish to use the area; how they plan to implement sustainability measures, including but not limited to reducing plastic pollution and mitigating emissions; how they will use science-based practices and/or knowledge to avoid over-exploiting resources and/or conserve the ocean; and how they will ensure future ocean health and sustainable use. Exemptions should be reviewed in relation to all previously granted exemptions, risk of harm, science-based evidence, and any potential negative impacts on Parties to this Agreement. Exemptions can be denied by a majority of Parties so long as the reasoning is tied to one or more of the previously listed factors. Exemptions will be governed strictly by this agreement's monitoring provisions.

Article 5 Relationship between this Agreement and the Convention and relevant legal instruments and frameworks and relevant global, regional, subregional and sectoral bodies

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22. This Agreement shall be interpreted and applied in the context of and in a manner consistent with the Convention. Nothing in this Agreement shall prejudice the rights, jurisdiction and duties of States under the Convention, including in respect of the exclusive economic zone and the continental shelf within and beyond 200 nautical miles.
23. This Agreement shall be interpreted and applied in a manner that does not undermine relevant legal instruments and frameworks and relevant global, regional, - 5 - subregional and sectoral bodies and that promotes coherence and coordination with those instruments, frameworks and bodies.
24. The legal status of non-parties to the Convention or any other related agreements with regard to those instruments is not affected by this Agreement.

Article 6 Without prejudice

This Agreement, including any decision or recommendation of the Conference of the Parties or any of its subsidiary bodies, and any acts, measures or activities undertaken on the basis thereof, shall be without prejudice to, and shall not be relied upon as a basis for asserting or denying any claims to, sovereignty, sovereign rights or jurisdiction, including in respect of any disputes relating thereto.

Article 7 General principles and approaches

In order to achieve the objectives of this Agreement, Parties shall be guided by the following principles and approaches:

- (a) The polluter-pays principle;
- (b) An ecosystem approach;
- (c) The principle of the common heritage of humankind which is set out in the Convention;
- (d) The benefit of mankind approach to improve environmental, economic, and cultural preservation;
- (e) The freedom of sustainable marine scientific research, together with other freedoms of the high seas;

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- (f) The freedom of navigation;
- (g) The principle of equity and the fair and equitable sharing of benefits;
- (h) The precautionary principle or precautionary approach, as appropriate;
- (i) An integrated approach to ocean management;
- (j) An approach that aims to build ecosystem resilience, including to adverse effects of climate change, plastic pollution, eutrophication, biodiversity loss, extreme weather events, and ocean acidification, and also maintains and restores ecosystem integrity, including the carbon cycling services that underpin the role of the ocean in climate;
- (k) The use of the best available science and scientific information;
- (l) The utilization, support, and expansion of green technology;
- (m) The use of relevant traditional knowledge of Indigenous Peoples and local communities, where available;
- (n) The respect, promotion and consideration of their respective obligations, as applicable, relating to the rights of Indigenous Peoples or of, as appropriate, local communities when taking action to address the conservation and sustainable use of areas beyond national jurisdiction;
- (o) The non-transfer, directly or indirectly, of damage or hazards from one area to another and the non-transformation of one type of pollution into another in taking measures to prevent, reduce and control pollution of the marine environment;
- (p) A no-regrets approach to conservation and pollution reduction;
- (q) State sovereignty approach to conservation and sustainable use;
- (r) Full recognition of the special circumstances of small island developing States and of least developed countries;
- (s) Full recognition of the disproportionate responsibility for climate change, plastic pollution, and other environmental issues by developed nations, and a commitment to ensure small, island, and developing countries do not bear a disproportionate burden to respond to these problems.

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- (t) Indigenous peoples and communities require free, prior, and informed consent before development, conservation, and resource use on their lands or territories.

Obligations and Commitments

1. Sustaining Marine Biodiversity - Marine Protected Areas

a. Marine Conservation and Biodiversity

- i. All signatories commit to conserving and sustainably managing marine biodiversity in areas beyond national jurisdictions through multilateral cooperation and adherence to internationally-recognised environmental standards.
- ii. Ecosystem Protection: Prioritizing marine biodiversity conservation, guided by international collaboration and sustainable use principles.
 - 1. Monitoring and Mitigation: Implementing robust, coordinated monitoring systems to prevent and address illegal activities, such as unregulated fishing and detrimental resource extraction on the high seas.
- iii. All participating countries find common ground to define the categories and definitions of MPAs under this treaty, providing consideration of national sovereignty and economic viability.
- iv. Creation of a scientifically backed target of 30% of the ocean protected by MPAs by 2030, with common but differentiated responsibilities for each nation.
 - 1. MPAs with sustainable-use zones will count toward the target, supporting countries with large fishing industries to achieve conservation without sacrificing economic interests.
- v. States shall adopt national and regional measures to prevent and control the introduction and spread of invasive species in the marine environment.
- vi. The prevention and reduction of pollution and emissions to the marine environment.

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- b. Establish a well-connected network of MPAs and provide support for capacity and voluntary technology transfer to support developing countries in creating and implementing MPAs

2. Sustainable Use of the High Seas

a. Marine Resource Extraction

i. Resource Access

i. *Fisheries*

1. Establishing Sustainable Practices

- a. Parties shall implement and enforce scientifically based, fisheries management policies to prevent overfishing and ensure the long-term sustainability of marine fish stocks. This includes the establishment of catch limits, the use of selective fishing gear, the reduction of bycatch, and the implementation of closed seasons or areas as needed.
- b. Parties shall also work to combat illegal, unreported, and unregulated (IUU) fishing through enhanced monitoring, reporting, and compliance mechanisms, and through regional cooperation and the strengthening of enforcement capacities.
- c. Provision of **green technology subsidies** for vessels operating within the boundaries of member nations to support economic activity without compromising conservation efforts.

ii. *Mining*

- 1. There shall be a moratorium on all new deep seas mining practices (including but not limited to: bedrock, minerals, and oil) until further research.

b. Navigation and Shipping

i. Balanced Regulation on Navigation and Shipping

- 1. Coastal and high-seas shipping practices must align with environmental standards, prioritizing biodiversity conservation without compromising national development and security interests.

ii. Navigation

- 1. Countries are encouraged to adopt low-impact naval navigation practices within MPAs to support marine conservation efforts that align with each nation's unique development priorities and regional goals.

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2. As stated in the original BBNJ treaty, this agreement excludes any warship, military aircraft, or naval auxiliary from its scope.
- iii. Shipping
 1. Incentivize and increase green shipping initiatives, such as fuel-efficient vessels and noise-reducing technologies, to minimize the environmental footprint of shipping activities.
- iv. Oversight
 1. Cooperate to form/assign authority to an existing institution to govern activities beyond national jurisdiction and make sure global interests are not shadowed by bias toward any particular countries' priorities.

3. Equitable Economic Development

- a. Commit to support equitable implementation through the following principles:
 - i. Developed economies will provide resources to local communities and less-economically developed nations to adapt to meet the obligations of this treaty
 - ii. Create international funding mechanisms to support monitoring, enforcement, and sustainable technological innovations by developing economies, ensuring their active participation.

4. Environmental Impact Assessments (EIAs)

- a. Establish an EIA process that creates basic modern requirements for assessing planned human activities and requires activities that take place on—or may have a significant effect on—the high seas to be managed in a way that avoids, mitigates or manages significant adverse effects.

5. Sovereignty

- a. Recognition of Sovereignty and Marine Stewardship
 - i. No State shall claim or exercise sovereignty or sovereign rights over areas beyond national jurisdiction. No such claim or exercise of sovereignty or sovereign rights shall be recognized.
 - ii. Marine Stewardship: Ensuring that conservation efforts include Indigenous, local, and commercial stakeholders as contributors to marine stewardship.

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6. Navigation and Shipping

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- i. Countries are encouraged to adopt low-impact naval navigation practices within MPAs to support marine conservation efforts that align with each nation's unique development priorities and regional goals.
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c. Shipping

- i. Increase green shipping initiatives.

d. Oversight

- i. Cooperate to form/assign authority to an existing institution to govern activities beyond national jurisdiction and make sure global interests are not shadowed by bias toward any particular countries' priorities.

7. Indigenous Rights, Representation, and Inclusion

a. Indigenous Rights

- i. **Sovereignty:** This treaty shall not be used to infringe upon the sovereign rights of indigenous peoples in the marine environment and must respect existing protections for indigenous peoples as enshrined in national laws and international agreements, including the United Nations Declaration on the Rights of Indigenous Peoples.
- ii. **Respect for Indigenous Rights:** This treaty shall not preclude indigenous communities from accessing existing or future rights to sovereignty, marine territories, stewardship, traditional use, cultural use, and presence.

b. Indigenous Representation in Decision-Making

- i. **Right to participate:** Indigenous peoples have the right to participate in decision-making processes concerning conservation and sustainable use of marine resources in the high seas.
- ii. **Consultation:** Parties shall establish frameworks to consult and include indigenous peoples in the development, implementation, and

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monitoring of MPAs, giving equal consideration to indigenous perspectives as those of other stakeholders.

- iii. **Respect for Indigenous Knowledge:** Indigenous knowledge must be respectfully obtained and used in a manner that minimizes impacts to privacy and information security.
- iv. **Free, Prior, and Informed Consent:** Any conservation, sustainable use, or extraction-based decision that impacts the marine territories, practices, and livelihoods of indigenous peoples requires the free, prior, and informed consent of indigenous communities that will be impacted.

c. Indigenous Inclusion

- i. **Technology Transfer and Knowledge Sharing:** Indigenous peoples shall be included in technology-transfer and knowledge-sharing opportunities.
- ii. **Indigenous Stewardship:** The expertise of indigenous peoples to sustainably steward natural resources will be valued and represented in research, decision-making, implementation, and monitoring bodies.
- iii. **Conservation:** Indigenous knowledge will be included in conservation approaches and frameworks.

Implementation, Resource Mobilization and Institutions

1. **Funding Mechanism**

- a. Each Party shall provide, within its capabilities and under limitations of their national law and regulations, resources in respect of those activities that are intended to achieve the objectives of this Agreement, taking into account and limited by its national policies, priorities, plans, and programmes.
- b. A mechanism for the provision of adequate, accessible, new and additional and predictable financial resources under this Agreement is hereby established. The mechanism shall assist developing States Parties (identified by World Bank Income Based Metrics) in implementing this Agreement, including through funding in support of capacity-building and the transfer of marine technology, and perform other functions as set out in this article for the conservation and sustainable use of marine biological diversity.
- c. The special fund and the Global Environment Facility trust fund shall be utilized in order to:

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- i. support the conservation and sustainable use of marine biological diversity of areas beyond national jurisdiction, to finance rehabilitation and ecological restoration of marine biological diversity of areas beyond national jurisdiction.
- ii. Fund capacity-building projects under this Agreement, including effective projects on the conservation and sustainable use of marine biological diversity and activities and programmes, including training related to the transfer of marine technology;
- iii. Assist developing States Parties in implementing this Agreement;
- iv. Support and protect conservation and sustainable use programmes by Indigenous Peoples and local communities as holders of traditional knowledge;
- v. Support public consultations at the national, subregional and regional levels;
- vi. Fund pollution reduction, education, and outreach campaigns, including but not limited plastic pollution, toxic waste pollution, natural resource extraction pollution, etc.;
- vii. Fund the undertaking of any other activities as decided by the Conference of the Parties.
- viii. Special fund for the distribution of monetary “benefits”, through the establishment of assessed contributions: This mechanism would have entailed the establishment of a scale of assessments for every Party to the BBNJ agreement, similar to the existing one for the payment of the assessed budgets of the United Nations, through which every Party must pay a share that is determined in accordance with several parameters, mostly the capacity to pay. These determinations will be conferred using World Bank Income Based Metrics.

2. Scientific and Technical Body:

- a. UNCLOS will establish a Scientific and Technical Body (STB), through the UN Commission on Science and Technology for Development, made up of interdisciplinary scientific experts with proportional representation from all nations that sign the BBNJ.
- b. The STB is to be an advisory body under the authority and guidance of the CoP to provide scientific and technical advice as needed to support the objectives and implementation of the Agreement,

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including in its functions to review and make recommendations under the EIA and MPA parts of the Agreement.

- c. The STB will be composed of representative members serving in their expert rather than national capacity, taking into account the need for multidisciplinary expertise, including representation of Indigenous Knowledge, gender balance and equitable geographical representation.

3. Marine Protected Areas

- a. The establishment of area-based management tools, including marine protected areas, shall not include any areas within national jurisdiction and shall not be relied upon as a basis for asserting or denying any claims to sovereignty, sovereign rights or jurisdiction, including in respect of any disputes relating thereto. Parties are encouraged to and supported in integrating protected areas within national jurisdictions into broader networks of protection in the high seas.
- b. Proposals
 - i. Proposals regarding the establishment of area-based management tools, including Marine Protected Areas, under this Part shall be submitted by Parties, individually or collectively, to the secretariat.
 - ii. Parties shall collaborate and consult, as appropriate, in accordance with national law with relevant stakeholders, including States and global, regional, subregional, and sectoral bodies, as well as civil society, the scientific community, the private sector, Indigenous Peoples, and local communities, for the development of proposals, as set out in this Part.
 - 1. The sponsoring party proposal must include:
 - i. A geographic or spatial description of the area that is the subject of the proposal by reference to the indicative criteria specified in Annex I;
 - ii. Information on any of the criteria specified in Annex I, as well as any criteria that may be further developed and revised in accordance with paragraph 5 below applied in identifying the area;

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- iii. The STB will work in collaboration with the sponsoring party. The conservation proposal will be kept confidential by the review board to ensure privacy and will include:
 - 1. Human activities in the area, including uses by Indigenous Peoples and local communities, and their possible impact, if any;
 - 2. A description of the state of the marine environment and biological diversity in the identified area;
 - 3. A description of the conservation and, where appropriate, sustainable use objectives that are to be applied to the area;
 - 4. A draft management plan encompassing the proposed measures and outlining proposed monitoring, research and review activities to achieve the specified objectives;
 - 5. The duration of the proposed area and measures, if any;
 - 6. Information on any consultations undertaken with States, including adjacent coastal States and/or relevant global, regional, subregional and sectoral bodies, if any;
 - 7. Information on area-based management tools, including marine protected areas, implemented under relevant legal instruments and frameworks and relevant global, regional, subregional and sectoral bodies;
 - 8. Relevant scientific input and, where available, traditional knowledge of Indigenous Peoples and local communities.
 - 9. Suggested Zone & Class of the proposed MPA
- c. The Secretariat shall establish a judicious equitable and expeditious review process of the Proposed MPA
- d. The Conference of the Parties may make recommendations to Parties to this Agreement and to global, regional, subregional and sectoral bodies to promote the adoption of relevant measures through such instruments, frameworks and bodies.
- e. The Conference of the Parties shall make arrangements for regular consultations to enhance cooperation and coordination with and among relevant legal instruments and frameworks and relevant global, regional, subregional and sectoral bodies.

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f. The Conferences of the Parties will vote for the final approval based on a simple majority.

g. The implementation of the measures adopted under this Part should not directly or indirectly impose a disproportionate burden on Parties that are small island developing States or least developed countries (identified by Word Bank Income Based Metrics).

h. Parties shall encourage those States that are entitled to become Parties to this Agreement, in particular those whose activities, vessels or nationals operate in an area that is the subject of an established area-based management tool, including a marine protected area, to adopt measures supporting the decisions and recommendations of the Conference of the Parties.

3. Knowledge Sharing

1. Parties will collaborate directly or through relevant legal frameworks and organizations to support each other, especially developing States Parties, in achieving the goals of BBNJ, with an emphasis on environmental sustainability and biodiversity conservation.
 - i. Parties will fully acknowledge the specific needs of developing state parties and ensure the transfer of marine technology is provided without requiring burdensome reporting obligations.
 - ii. They will establish collaborative platforms to share and distribute scientific knowledge, technological tools, and policy strategies that foster active cooperation and participation in implementing BBNJ provisions, with a particular emphasis on assisting parties from developing countries.
2. Parties will collaborate at all levels to build capacity and transfer marine technology under this Agreement. This includes partnerships with stakeholders like the private sector, civil society, and Indigenous Peoples, while also enhancing coordination among relevant legal frameworks and organizations.
3. It shall be tailored to the needs and priorities of developing States Parties, considering the unique circumstances of small island developing States and least developed countries, the need assessments will be carried out on case-by-case, subregional or regional basis.
 - a. Capacity-building and the transfer of marine technology must be a country-driven, transparent, effective, and iterative process that is inclusive, cross-cutting, includes IPLC representatives, ensuring

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their participation in decision-making processes that affect their lands, cultures, and livelihoods, and incorporates gender sensitivity into all aspects, ensuring that policies, programs, and initiatives are designed and implemented in a way that takes into account the diverse environmental needs of all genders, particularly women, girls, and gender minorities.

- b. The modalities for capacity-building and for the transfer of marine technology should take into account national policies, priorities, plans and programmes.
- c. The marine technologies shall be appropriate, relevant and, to the extent possible, reliable, affordable, up-to-date, environmentally sound and available in an accessible form for developing States Parties.
- d. Sharing information and raising awareness, including about the traditional knowledge of Indigenous Peoples and local communities, will respect their free, prior, and informed consent.
- e. The COP shall periodically review, evaluate and update, indicative and non-exhaustive list of capacity-building types and marine technology transfers so it can reflect technological advancements and adapt to the changing needs of States, subregions, and regions as necessary.

4. Equitable Access to Resources & Decision-Making

- a. All parties—with particular attention to developing states—are ensured equal access to decision-making processes, financial resources, and technology regardless of their respective economic and technological capacities

Monitoring and Dispute Settlement

1. Establishment of an independent Monitoring body

- a. The monitoring body will have equal representation from all signatory states.
- b. The independent monitoring body will consist of ten experts selected by the ten countries drafting this Treaty, without government or political affiliations.
- c. The body will be funded in accordance with the Resources Mobilization article of this Treaty
- d. The body will operate under strict neutrality guidelines and be responsible for:

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- i. Collecting data via satellite monitoring, remote sensing, and other technological monitoring tools that are governed and operated by the independent body.
- ii. Leveraging the technology provided by the member countries and/or independent research institutions. Countries are permitted to use their own technologies.
- iii. Ensuring that the data is accessible and the technology meets objective, verifiable standards.
- iv. Collecting country-level self-reported data and verifying it through above technologies
- v. Issuing warnings, fines, and sanctions as needed.

2. Role of the Monitoring Body

- a. Parties shall, individually or collectively, report to the independent monitoring body on the implementation of area-based management tools, including marine protected areas, established under this Part and related measures. Such reports, as well as the information and the review referred to in paragraphs 2 and 3 below, respectively, shall be made publicly available by the secretariat.
 - i. The data required shall include (subject to change upon technical body's recommendation and activity based/location needs):
 1. Quantities of all outputs extracted through deep-sea mining activities
 2. Cargo shipping quantities
 3. Shipping paths
 4. Commercial fishing activities
 5. Recreational fishing activities/areas
- B. The relevant legal instruments and frameworks and relevant global, regional, subregional, and sectoral bodies shall be invited to provide information to the monitoring body on the implementation of measures that they have adopted to achieve the objectives of area-based management tools, including marine protected areas, established under this Part, while upholding national sovereignty and security.
- c. Area-based management tools, including marine protected areas, established under this Part, including related measures, shall be monitored and periodically reviewed by the Scientific and Technical Body, taking into account the reports and information referred to in paragraphs 1 and 2 above, respectively.
 - b. In the review referred to in paragraph 3 above, the Scientific and Technical Body shall assess the effectiveness of area-based

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management tools, including marine protected areas, established under this Part, including related measures and the progress made in achieving their objectives, and provide advice and recommendations to the Monitoring Body.

- c. Following the review, the Monitoring Body shall, as necessary, take decisions or recommendations on the amendment, extension or revocation of area-based management tools, including marine protected areas, and any related measures adopted by the Monitoring Body, on the basis of the best available science and scientific information and, where available, relevant traditional knowledge of Indigenous Peoples and local communities, taking into account the precautionary approach and an ecosystem approach.

2. Ensuring Consistent, enforceable monitoring

- a. Each nation maintains the right to establish its own monitoring system and collect data within its national boundaries. Beyond national jurisdiction, parties will adhere to self-report mechanisms outlined in this Part, as well as be subject to any other remote sensing enforced by the monitoring body.
- b. The monitoring system shall be participatory for the local community by integrating indigenous knowledge and user-friendly indicators.
- c. An enforceable, anonymized data-sharing standard will be implemented among member countries to verify compliance and anonymity when open-source information is available.
- d. **Establishment of an Annual conference**
 - i. All impacted Parties, interested non-Party members, and industry stakeholders can review and propose adjustments to the monitoring system in an annual conference.
 - ii. The annual conference shall have seats for leaders of local and indigenous communities.
 - iii. The annual conference will include media coverage to promote accountability and document areas for improvement.
- e. **Infraction Reporting**
 - i. Official notices of infractions can be submitted by a government body or anonymized and represented through a registered organization in a signatory party.
 - ii. An investigative committee will review reports and collect and verify evidence of infraction.
 - iii. If an infraction is verified, the committee will recommend that the Monitoring and Dispute Settlement Body file a formal notice to the BBNJ charging the responsible country for non-compliance.
- f. **Dispute Settlement**

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The following dispute settlement process applies separately to usage infractions (failure to comply with treaty rules) and monitoring infractions (failure to monitor according to the agreed-upon standards). This process operates within an annual monitoring cycle, ensuring regular assessments and opportunities for Parties to demonstrate progress and compliance.

a. First Infraction: Warning

- A warning is issued to the government of the violating Party as part of the annual monitoring cycle.
- The warning includes:
 - Details of the violation.
 - Required corrective actions.
 - A timeline for compliance, to be completed by the end of the next monitoring cycle, as determined by the independent governing body.
- Extensions to corrective timelines may be granted based on progress demonstrated in the subsequent annual compliance report, verified by the independent governing body.

c. Second Infraction: Mediation

- If the Party incurs a second infraction during a subsequent annual monitoring cycle, an independent mediator from another Party to the agreement will facilitate a solution between the monitoring body and the violating Party.
- The mediator must be mutually approved by both the violating Party and the monitoring body.
- The mediation process must conclude within the same monitoring cycle to allow time for the Party to present a remedial action plan in the next cycle.

d. Third Infraction: Monetary Fine

- A monetary fine is imposed if a Party incurs a third infraction during the annual monitoring cycle.
- The fine amount is determined by the independent governing body but will not exceed the economic benefit derived from the specific infraction.
- The independent governing body will calculate the fine based on:
 - Verified evidence of the economic benefit obtained from the infraction.
 - Individual country circumstances and capacities.
- Fines are assessed at the conclusion of the monitoring cycle in which the infraction occurs.

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- Collected fines are pooled to fund compliance technologies or projects critical to meeting treaty goals, with priority given to Parties demonstrating financial or technical need.

e. Fourth Infraction: Sanctions

- Sanctions, such as temporary suspension of operations or loss of access to shared resources, are applied if a Party incurs a fourth infraction during an annual monitoring cycle.
- The violating Party must develop an operations modification plan and will be monitored intensively for five consecutive monitoring cycles.
- Annual reviews are conducted at the end of each monitoring cycle during this period to assess compliance progress.
- If compliance is not achieved by the end of a five-cycle period, the process restarts with additional penalties as deemed appropriate.
- Upon satisfactory compliance, the Party may return to the initial stage of the dispute process for any subsequent infractions.

Annual Monitoring Cycle Framework

1. Cycle Overview:

- Each Party must submit an annual compliance report detailing adherence to treaty obligations and progress toward corrective actions.
- Infractions and associated remedies are assessed within the cycle, ensuring clear timelines for corrective actions and dispute resolution.

2. Annual Review Process:

- a. At the conclusion of each monitoring cycle, the independent governing body conducts a review that includes:
 - i. Verification of compliance reports.
 - ii. Assessment of corrective actions undertaken.
 - iii. Reevaluation of measures, including fines and sanctions, based on progress or newly presented evidence.
- b. Parties may request adjustments to imposed measures during this review process.

3. Support for Compliance:

- a. Parties facing challenges in meeting compliance requirements may request technical assistance or capacity-building support during the monitoring cycle.
- b. Priority is given to developing countries to ensure equitable outcomes within the framework of the monitoring cycles.

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4. Management of the Withdrawal Process

- a. At the annual conference, any Party interested in withdrawing must provide notice of intent to do so.
- b. A delayed exit period of three years will follow the stated intent to withdraw.
- c. Upon full withdrawal, any technologies or resources provided through the Treaty will be reallocated by the independent monitoring body to the remaining member countries, as deemed appropriate at the body's discretion.

Party Signatories:

Chile, Nigeria, Seychelles, Mauritius, USA, China, Norway, Peru